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GLOBAL BUSINESS MOBILITY - GRADUATE TRAINEE VISA



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GLOBAL BUSINESS MOBILITY - GRADUATE TRAINEE VISA

The UK Graduate Trainee Visa is for overseas workers who wish to be transferred to the UK by their employer for a work placement in the UK as part of a graduate training course leading to a senior managerial or specialist role (also known as an intra-company transfer graduate trainee).

The Graduate Trainee Visa does not lead directly to settlement in the UK. However, you may be able to switch into another immigration route which does lead to settlement. Applicants may be joined or accompanied by a partner and dependent children. There is no limit on the number of graduate trainees that a UK sponsor may sponsor.

Requirements for a UK Graduate Trainee Visa

In order to qualify for a Graduate Trainee Visa, you will need to satisfy UK Visas and Immigration that:

- You are aged 18 or over;
- You are currently working for a business or organisation that is linked to your UK sponsor by common ownership or control, or by a joint venture on which you are sponsored to work, and have worked outside the UK for this business or organisation for at least 3 months immediately before the date of your visa application;
- You have a valid **Certificate of Sponsorship** (<https://immigrationbarrister.co.uk/certificates-of-sponsorship-all-you-need-to-know/>) issued by your UK sponsor for the job you are planning to do;
- The job you are planning to do is genuine;
- The job you are planning to do is at an appropriate skill level;
- You will be paid a salary which equals or exceeds the general salary threshold of £10,000 per year and 70% of the pro-rated 'going rate' for the applicable SOC 2020 occupation.

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- code, whichever is higher;
- You have enough money to support yourself without relying on public funds. <https://www.google.co.uk/search?q=richmond+chambers+in>
 - You have provided a valid TB certificate, if required.

The exact requirements you will need to satisfy will vary depending on your circumstances. You may want to speak to an immigration lawyer for expert advice.

To discuss your UK Graduate Trainee Visa application with one of our immigration barristers, contact our business immigration team on 0203 617 9173 or complete our enquiry form below.

Graduate Trainee Visa Overseas Work Requirement

If you are applying for a Graduate Trainee Visa, you must be currently working for a business or organisation that is linked to your UK sponsor by common ownership or control, or by a joint venture on which you are sponsored to work, and have worked outside the UK for this business or organisation for at least 3 months immediately before the date of your visa application.

This 3 month period of work must have been continuous with no breaks and cannot include time spent working in the UK.

Graduate Trainee Visa Certificate of Sponsorship (CoS) Requirement

In order to obtain a Graduate Trainee Visa you must have a valid **Certificate of Sponsorship** (<https://immigrationbarrister.co.uk/certificates-of-sponsorship-all-you-need-to-know/>) for the job you are planning to do. Your Certificate of Sponsorship will need to have been issued by an employer that is authorised by the Home Office to sponsor the job in question under the Global Business Mobility – Graduate Trainee route.

Your sponsor must be listed as A-rated on the Home Office's register of licensed sponsors, unless you were last granted permission as a Graduate Trainee and are applying to continue working for the same sponsor as in your last permission.

Your Certificate of Sponsorship must have been issued not more than 3 months before the date of your Graduate Trainee Visa application.

Your Certificate of Sponsorship must include certain mandatory information, including:

- Details of your name, job and salary;
- Confirmation that you are currently working for a business or organisation that is linked to your UK sponsor by common ownership or control, or by a joint venture on which you are sponsored to work, and have worked outside the UK for this business or organisation for at least 3 months immediately before the date of your visa application;

- A start date which is no more than 3 months after the date of your Global Business Mobility – Graduate Trainee Visa application; (<https://www.google.co.uk/search?q=richmond+chambers+in+immigration+barristers>)
- (2) Confirmation that the Certificate of Sponsorship has not been used in a previous application which was either granted or refused and has not been withdrawn by your sponsor or cancelled by the Home Office.

Genuine Job Requirement

In order to be granted a Global Business Mobility – Graduate Trainee Visa, you will need to satisfy the Home Office that you are being sponsored to undertake a genuine job.

If there are reasonable grounds to believe that the job you are being sponsored to do does not exist, is a sham or has been created mainly so that you can apply for a Global Business Mobility – Graduate Trainee Visa then your application will be refused.

The Home Office will also want to be satisfied that you have not entered into an arrangement whereby you will fill a temporary or permanent position, or undertake contract work which involves undertaking an ongoing routine role or providing an ongoing routine service to a third party who is not your sponsor.

Graduate Trainee Visa Job Skill Level Requirement

In order to qualify for a Global Business Mobility – Graduate Trainee Visa, the job you are being sponsored to do must be an eligible job at or above a minimum skill level.

The job you are planning to do must be skilled to at least RQF Level 6 (graduate equivalent). You do not necessarily need to hold a degree, but the role must be equivalent to a graduate level role.

The Home Office has published a **list of jobs that are eligible for a Global Business Mobility – Graduate Trainee Visa** ([https://www.gov.uk/government/publications/global-business-mobility-eligible-occupations-and-codes](https://www.gov.uk/government/publications/global-business-mobility-eligible-occupations-and-codes/global-business-mobility-eligible-occupations-and-codes)). The list includes the relevant occupation code, job type and related job titles.

The Home Office also sets out eligible jobs in **Appendix Skilled Occupations** (<https://www.gov.uk/guidance/immigration-rules/immigration-rules-appendix-skilled-occupations>). Each eligible job has a SOC 2020 occupation code. You must be sponsored for a job in an eligible SOC 2020 occupation code listed in Appendix Skilled Occupations.

You will usually meet the job skill level requirement if the job you are being sponsored for is on the list.

However, your sponsor must choose an appropriate occupation code. If the Home Office has reasonable grounds to believe that your sponsor has not chosen the most appropriate occupation code then your application for a Global Business Mobility – Graduate Trainee Visa will be refused

In assessing whether your sponsor has chosen the most appropriate occupation code, the Home Office will consider factors such as whether they have shown a genuine need for the job as described, whether you have the appropriate skills, qualifications and experience needed to do the job as described and the sponsor's history of compliance with the immigration system.

In order to qualify for a Global Business Mobility – Graduate Trainee Visa, the job you are being sponsored to do must be part of a structured graduate training programme, with clearly defined progression towards a managerial or specialist role within your sponsor organisation.

Graduate Trainee Visa Salary Requirement

Employers seeking to transfer an employee under the Global Business Mobility – Graduate Trainee Visa route must pay their skilled workers a salary which equals or exceeds both a general salary threshold requirement and, in most cases, 70% of the 'going rate' for the occupation (as set out in the relevant occupation code mentioned above).

General salary threshold requirement

The general salary requirement under the Graduate Trainee Visa route is £25,410 a year. Therefore, in most cases, an applicant for a Graduate Trainee Visa must be paid a salary which equals or exceeds £25,410 per year and 70% of the pro-rated going rate for the occupation as set out in the SOC 2020 occupation code, whichever is higher.

If the applicant is being sponsored for a job in one of the health or education occupation codes, the going rate requirement is 100% of the pro-rated going rate.

The assessment of salary is based on guaranteed basic gross pay (up to 48 hours per week) plus allowances which are guaranteed to be paid for the duration of the employment in the UK (such as London weighting) or are paid as a mobility premium or to cover the additional cost of living in the UK.

If the applicant is being sponsored to work a pattern where the regular hours are not the same each week, resulting in uneven pay, then work in excess of 48 hours in some weeks can be considered towards the salary threshold of £25,410, providing the average over a regular cycle (which can be less than, but not more than, 17 weeks) is not more than 48 hours a week. Any unpaid rest weeks will count towards the average when considering whether the salary thresholds are met.

Going rate requirement

The Home Office has published a list of going rates for eligible Global Business Mobility occupation codes (<https://www.gov.uk/government/publications/global-business-mobility-going-rates-for-eligible-occupations/global-business-mobility-going-rates-for-eligible-occupations>). The Home Office also sets out the going rates for jobs that are

eligible for a Graduate Trainee Visa in **Appendix Skilled Occupations**

(<https://www.gov.uk/guidance/immigration-rules/immigration-rules-appendix-skilled-occupations>). <https://www.google.co.uk/search?q=richmond+chambers+in>

The annual salaries stated are based on a 37.5-hour working week and must be pro-rated for other working patterns.

Your full weekly hours will be included when checking your salary against the going rate, even if you work more than 48 hours per week.

Immigration Skills Charge Requirement

Employers that are authorised by the Home Office to sponsor a Graduate Trainee are not required to pay the Immigration Skills Charge.

Graduate Trainee Visa Financial Requirement

Subject to the exemptions below, you will need to have cash funds of at least £1,270 available.

You will need to have held the money for at least 28 consecutive days ending not more than 31 days before the date of your Graduate Trainee Visa application.

You will be exempt from the financial requirement if your sponsor is willing to meet your maintenance costs up to the end of the first month of your employment, to an amount of at least £1,270, if necessary. Your sponsor will need to confirm this on your Certificate of Sponsorship.

If you are applying for permission to stay and have been in the UK with permission for 12 months or more at the date of application, you will meet the financial requirement and will not need to show funds.

Graduate Trainee Visa English Language Requirement

Graduate Trainee Visa applicants do not need to satisfy an English language requirement.

Switching into the Graduate Trainee Visa Route

If you currently have leave to remain in another immigration category, you may extend your stay by switching into the Global Business Mobility – Graduate Trainee route unless you have, or were last granted, permission as a Visitor, Short-term student, Parent of a Child Student, Seasonal Worker, Domestic Worker in a Private Household or outside the Immigration Rules.

Duration of a Graduate Trainee Visa



If your application for a Global Business Mobility – Graduate Trainee Visa is approved, you will be granted entry clearance for either 1 year from the start date of the job detailed in your Certificate of Sponsorship or the time given on your Certificate of Sponsorship plus 14 days, whichever is shorter.

You will not be able to extend your visa, but you will be able to apply for another Graduate Trainee visa from outside the UK.

Maximum Time in the Global Business Mobility Routes

If your application for a Graduate Trainee Visa is successful you will be able to stay in the UK up to a maximum period of 5 years in any 6 year period.

When calculating the period of time spent on the routes the Home Office will consider all previous periods of permission granted on the Global Business Mobility routes and all previous periods of permission granted on the Intra-Company routes.

Conditions of Stay on a Graduate Trainee Visa

Global Business Mobility – Graduate Trainee Visa holders are permitted to work for their sponsor in the job described on their Certificate of Sponsorship. They may also undertake a course of study and voluntary work. Access to public funds is not permitted.

Settlement on the Graduate Trainee Visa Route

The Graduate Trainee Visa does not lead directly to settlement in the UK. However, once in the UK, you may be able to switch into another immigration route which does lead to settlement, such as the **Skilled Worker** (<https://immigrationbarrister.co.uk/personal-immigration/long-term-work-visas/skilled-worker-visa/>) route or the **Innovator Founder** (<https://immigrationbarrister.co.uk/personal-immigration/business-visas/innovator-founder-visa/>) route. You will need to satisfy the requirements of the immigration route that you wish to extend into. Details of all the main immigration routes, including whether they lead to settlement, are available on our website.

You may also be eligible to extend your stay until you qualify for settlement on the basis of Long Residence (<https://immigrationbarrister.co.uk/personal-immigration/settlement-in-the-uk/long-residence-ilr/>).

Dependants of Graduate Trainee Visa Applicants

Global Business Mobility – Graduate Trainee Visa holders can be joined or accompanied by a dependent partner over the age of 18 and dependent children under the age of 18.

Global Business Mobility Sponsor Licence Application

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The Global Business Mobility routes are open to businesses of all sizes, including those with a trading presence outside the UK and a qualifying link to a UK business.

(<https://www.google.co.uk>)

In order to hold a Global Business Mobility sponsor licence, the UK business that will be receiving the worker must:

- Have an existing presence in the UK;
- Have qualifying links to an overseas business from which it will receive workers;
- Have suitable key personnel who will be responsible for the managing the licence; and
- Have systems in place to meet the sponsor licence duties.

Qualifying links to UK businesses are specific to the type of work assignment which is being undertaken in the UK.

In the case of a Global Business Mobility – Graduate Trainee sponsor the UK business must be linked to the overseas business that will send workers by common ownership or control, or by a joint venture agreement. In addition, the linked overseas business must offer a structured graduate training programmes that has a legitimate work placement in the UK.

How Our Immigration Barristers Can Help

Our team of business immigration barristers has experience in assisting overseas workers who are undertaking graduate work placements in the UK. We assist employers and skilled workers across a variety of industries in companies of all sizes. Our barristers can help you with planning to ensure that you meet the start date of your work placement and your immigration goals. Our business immigration barristers can also assist UK employers to obtain the right sponsor licence, maintain their licence at the highest rating and comply with their sponsor duties.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to employers and skilled workers as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Obtaining a Global Business Mobility - Graduate Trainee Sponsor Licence



Fresh applications, Administrative reviews and Judicial reviews for Global Business Mobility - Graduate Trainees



Applications for Skilled Worker Visas

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WHAT CAN WE HELP YOU WITH?

To discuss your Global Business Mobility - Graduate Trainee Visa application with one of our immigration barristers, contact our business immigration team on 0203 617 9173 or complete our enquiry form.

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By Annie Ee - Senior Legal Associate

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By Annie Ee - Senior Legal Associate

18 May 2023

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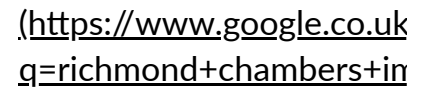
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